

Constitution of Palm Island New Company Limited

The Corporations Act

A company limited by guarantee

Registered in Queensland

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Constitution of Palm Island New Company Limited, a public company limited by guarantee.

General

1 Definitions

The following definitions apply in this Constitution unless the context requires otherwise:

ACNC Act means the *Australian Charities and Not-for-profits Commission Act 2013* (Cth).

Board means all or some of the Directors for the time being acting as a board.

Board Appointed Director means a person appointed as a Director in accordance with Article 44 and, where appropriate, includes an alternate Director for a Board Appointed Director.

By-Law means a by-law made or adopted by the Board under Article 69.

Chief Executive Officer means the chief executive appointed by the Board under Article 49.

Circular Resolution has the meaning given in Article 29(a).

Company means Palm Island New Company Limited.

Constitution means this constitution.

Corporations Act means the *Corporations Act 2001* (Cth) and the *Corporations Regulations 2001* (Cth).

Deductible Contribution means a contribution of money or property as described in item 7 or item 8 of the table in section 30-15 of the Tax Act.

Deductible Gift Recipient has the meaning given in the Tax Act.

Director means a person appointed or elected to the office of director of the Company in accordance with this Constitution and, where appropriate, includes an alternate Director.

Gift means a donation, contribution, gift, settlement, benefaction or other voluntary transfer or disposition of money, money's worth, property or benefits and whether inter vivos or by will and including any amounts for which the giver can claim an income tax deduction.

Manbarra Corporation means Manbarra Nanggarra Wanggarra Aboriginal Corporation, established under the *Aboriginal Councils and Associations Act 1976* (Cth).

Manbarra or Bwgcolman Person means a person, whether or not resident on Palm Island at any time, who identifies as, and who is generally recognised by the Palm Island community as, a member of the Manbarra people (who are recognised as the indigenous owners of Palm Island) or of the Bwgcolman people (who comprise the other clans and family groups of Palm Island).

Member means a person admitted to the membership of the Company in accordance with the provisions of this Constitution.

Member Elected Director means a Manbarra or Bwgcolman Person elected as a Director in accordance with Article 40 and, where appropriate, includes an alternate Director for a Member Elected Director.

Member Present means, in connection with a meeting, a Member present at the venue or venues for the meeting, in person or by proxy.

Objects means the objects of the Company set out in Article 4.

Palm Island means Palm Island in the State of Queensland.

Proxy Form has the meaning given in Article 34(e).

Registered Charity means a charity registered under the ACNC Act.

Related Body Corporate has the meaning given in the Corporations Act.

Related Person, in relation to a person, means any of:

- (a) a Relative of the person; and
- (b) a Relative of the Spouse of the person.

Relative, in relation to a person, means the Spouse, parent, grandparent or other lineal ancestor, child, grandchild or other lineal descendant, brother, sister, aunt, uncle, or first cousin of the person or another relative of the person as prescribed in a By-Law and the Spouse of any such Relative.

Secretary means a person appointed as, or to perform the duties of, secretary of the Company.

Special Resolution means a resolution passed:

- (a) at a general meeting of which notice has been given in accordance with Article 21; and
- (b) by at least 75% of the votes cast by Members Present entitled to vote on the resolution.

Spouse of a person includes a de facto partner of the person within the meaning of the *Acts Interpretation Act 1901* (Cth).

Tax Act means the *Income Tax Assessment Act 1936* (Cth), the *Income Tax Assessment Act 1997* (Cth) and the *Taxation Administration Act 1953* (Cth).

Traditional Owner Director means a Manbarra or Bwgcolman Person appointed as a Director in accordance with Article 43, and, where appropriate, includes an alternate Director for a Traditional Owner Director.

2 Interpretation

- (a) Headings are for convenience only and do not affect interpretation.
- (b) Mentioning anything after includes, including, for example, or similar expressions does not limit what else might be included.
- (c) The following rules apply unless any contrary intention appears in this Constitution or the context requires otherwise.
 - (i) The singular includes the plural, and the converse also applies.
 - (ii) If a word or phrase is defined, its other grammatical forms have a corresponding meaning.
 - (iii) A reference to a *person* includes a corporation, trust, partnership, unincorporated body or other entity, whether or not it comprises a separate legal entity.
 - (iv) A reference to an Article is a reference to an Article of this Constitution.
 - (v) A reference to legislation or to a provision of legislation includes a modification or re-enactment of it, a legislative provision substituted for it and a regulation or statutory instrument issued under it.
 - (vi) A word or phrase given a meaning in the Corporations Act has the same meaning in this Constitution.
- (d) If the Company is not a Registered Charity (even if it remains a charity), the Corporations Act overrides any Article that is inconsistent with the Corporations Act, to the extent of the inconsistency.
- (e) While the Company is a Registered Charity, the ACNC Act and the Corporations Act override any Article that is inconsistent with the ACNC Act or the Corporations Act, to the extent of the inconsistency.

3 Replaceable Rules

The replaceable rules contained in the Corporations Act do not apply to the Company.

Objects and Powers

4 Objects

- (a) In recognition of the history of colonisation and dislocation encountered by the Manbarra and Bwgcolman peoples of Palm Island and of their disadvantaged circumstances as a consequence, as well as of their inherent personal and cultural strength, the main object of the Company is to promote and advance the empowerment, health, well-being, sustainability of the Manbarra and Bwgcolman peoples.
- (b) Without limiting Article 4(a), in pursuing the main object, the Company may:
 - (i) provide a broad range of health, human, social and employment services to improve the health, well-being and quality of life outcomes of Manbarra and Bwgcolman people;
 - (ii) provide, promote and facilitate employment, education and training opportunities to improve the employment outcomes for Manbarra and Bwgcolman people and ensure that a sustainable and skilled workforce is available to provide culturally appropriate services for Manbarra and Bwgcolman people, including by establishing and operating social enterprises;
 - (iii) advocate on behalf of Manbarra and Bwgcolman people in all matters relating to empowerment, health, well-being, quality of life, employment and sustainability, including for the provision of services to achieve those objects;
 - (iv) promote the empowerment of Manbarra and Bwgcolman people to pursue their rights, entitlements and self-determination in achieving their health, well-being, quality of life and employment aspirations;
 - (v) collaborate and cooperate with, and assist other Palm Island community organisations or bodies, that represent or provide benevolent services to Manbarra and Bwgcolman people, in order to enhance their service delivery, governance, viability and sustainability;
 - (vi) provide Manbarra and Bwgcolman people with assistance in establishing and operating viable businesses and entrepreneurial endeavours; and
 - (vii) raise funds by any means, including the operation of commercial businesses and other enterprises.
- (c) Without limiting Article 4(b)(i), the services the Company may provide include:
 - (i) individual and family support programs and preventative, early intervention and crisis interventions for:
 - (A) strengthening family and community connections;
 - (B) ensuring the safety and well-being of men, women and children; and
 - (C) ensuring the well-being of vulnerable Manbarra and Bwgcolman people, including the aged and those living with a disability;
 - (ii) health services, including primary health care to improve the physical, mental and emotional health outcomes for Manbarra and Bwgcolman people;

- (iii) services, including preventative interventions for improving community safety, reducing incarceration rates and supporting Manbarra and Bwgcolman people in contact with the justice system;
 - (iv) providing cadetships, scholarships and traineeships to Manbarra and Bwgcolman people;
 - (v) services, advocacy and interventions to assist Manbarra and Bwgcolman people to engage with legal, health, income support and financial services and to acquire housing;
 - (vi) social planning and community development activities, including promoting and enhancing opportunities for self-determination, community participation in decision making and community capacity building of the Manbarra and Bwgcolman people; and
 - (vii) contributing to, or management of, community, recreational, media and other activities and events to enhance community connections and well-being of the Manbarra and Bwgcolman people.
- (d) The Company may carry out any charitable objects, purposes and activities that are ancillary or incidental to the main object of the Company.

5 Powers

Subject to Article 6, the Company has the following powers which may only be used to carry out the Objects:

- (a) the powers of an individual; and
- (b) the powers of a company limited by guarantee under the Corporations Act.

Income and Property

6 Application of income and property

- (a) Subject to Article 6(b), the profits (if any) or other income and the assets of the Company must be applied solely towards the promotion of the Objects or as provided in Articles 70 and 71 and must not be distributed to Members directly or indirectly.
- (b) Nothing in Article 6(a) prevents any payment in good faith made by the Company:
 - (i) of remuneration payable to any Member as an employee of the Company;
 - (ii) of reasonable and proper remuneration to any Member for services actually rendered or goods supplied in the ordinary and usual course of business of the Company;
 - (iii) of the payment or reimbursement of out-of-pocket expenses incurred by a Member on behalf of the Company where the amount payable does not exceed an amount previously approved by the Board;
 - (iv) of reasonable and proper rent for premises leased by any Member to the Company;
 - (v) of interest (at a rate not exceeding the interest rate for the time being charged by the Company's bankers for overdrawn accounts) on money borrowed from the Member;
 - (vi) to a Member in the course of carrying out the Objects; or

- (vii) of reasonable and proper remuneration to a Member acting in the capacity as a Director.

Membership

7 Members of the Company

- (a) The Members are those persons admitted to the membership of the Company whose names are entered into the Company's register of Members.
- (b) On registration of the Company the Members will be those persons named in Schedule 2 to this Constitution who signed this Constitution before the Company was incorporated.
- (c) The Board may determine from time to time the minimum and maximum number of members of the Company.

8 Liability of Members

- (a) The liability of the Members of the Company is limited.
- (b) The Members undertake to contribute to the assets of the Company in the event of it being wound up while they are a Member, or within one year after they cease to be a Member, for payment of the debts and liabilities of the Company and of the costs, charges and expenses of winding up, such amount as may be required not exceeding \$10.

9 Eligibility for Membership

A Member of the Company must be a Manbarra or Bwgcolman Person aged 18 years or over.

10 Admission as a Member

- (a) A person who is eligible and wants to apply for membership must submit a written application, in the form prescribed by the Board, to the Company, signed by the applicant and two Members proposing the application.
- (b) An application must include a statement by the applicant in the form prescribed by the Board that the applicant:
 - (i) wishes to become a Member; and
 - (ii) supports the Objects.
- (c) If required by the Board, an applicant for membership must:
 - (i) attend an information session about the Company;
 - (ii) pay any entrance or annual membership fee, as determined by the Board from time to time;
 - (iii) demonstrate to the satisfaction of the Board that the applicant has a bona fide interest in, and supports the achievement of the Objects; and
 - (iv) comply with any other requirements prescribed by the Board for admission as a Member.
- (d) The Board must consider an application for membership within a reasonable time after the Company receives the application for membership and the applicant has complied with any other admission requirements.
- (e) The Board may decide whether or not to admit the applicant in its absolute discretion.
- (f) If the Board decides to reject an application, the Secretary must, as soon as possible:

- (i) notify the applicant of the Board's decision but does not have to give any reasons for the Board's decision; and
 - (ii) refund any entrance or membership fee paid by the applicant.
- (g) If the Board approves an application, the Secretary must, as soon as possible, notify the applicant and enter the applicant in the Company's register of Members.
- (h) The Board may approve an application even if the application does not state the matters mentioned in Article 10(b) and in that case, by applying to become a Member, the applicant is taken to have agreed to those matters.

11 Membership Fee

The Board may from time to time determine any entrance fees or membership fees payable by Members and the frequency and other terms of payment of the fees.

12 Resignation of a Member

A Member may resign from the Company by giving written notice to the Secretary. The resignation will be effective from the later of the date the notice is received by the Secretary or any later effective date specified in the notice.

13 Non-payment of Membership Fee

- (a) If any membership fee of a Member remains unpaid for a period of 28 days after it becomes due, the Secretary will give notice to the Member of that fact as soon as reasonably practicable.
- (b) If any membership fee remains unpaid more than 14 days after the date of the notice given under Article 13(a), the Board may cancel the membership of the Member and remove the Member's name from the register of Members.

14 Disciplining Members

- (a) In accordance with this Article, the Board or the Company in general meeting may warn, suspend or expel from the Company, any Member:
 - (i) who does not comply with the provisions of this Constitution;
 - (ii) who shows behaviour which is causing or has caused, or is likely to cause harm to the Company; or
 - (iii) whose conduct is considered to be prejudicial to the interests of the Company.
- (b) At least 14 days before the Board meets to consider a resolution to warn, suspend or expel a Member, the Secretary must send a notice to the Member that states:
 - (i) all relevant information, including any allegations against the Member;
 - (ii) the proposed resolution for the Member's warning, suspension or expulsion; and
 - (iii) that the Member has an opportunity to address the meeting, before the passing of the resolution, either orally or in writing and provide any explanation or defence the Member thinks fit.
- (c) After considering an explanation given under Article 14(b)(iii) (if any), the Board may:
 - (i) take no further action;
 - (ii) warn the Member;

- (iii) suspend the Member's rights as a Member for a period of no more than 12 months;
 - (iv) expel the Member and remove the Member's name from the register; or
 - (v) require the matter to be determined at a general meeting.
- (d) The Secretary must notify the Member of the decision under Article 14(c) as soon as possible and if a decision is made under Article 14(c)(v), a general meeting to consider the matter must be convened as soon as reasonably practicable.
- (e) No person will be liable for any loss or damage suffered by the Member as a result of any decision made in good faith under this Article.
- (f) The Company cannot fine a member.

15 Ceasing to be a Member

A Member's membership of the Company will automatically cease:

- (a) on the date that the Member:
 - (i) dies;
 - (ii) becomes bankrupt;
 - (iii) resigns in accordance with Article 12;
 - (iv) has their membership cancelled under Article 13(b);
 - (v) is expelled under Article 14; or
 - (vi) becomes a person of unsound mind or a person whose person or estate is liable to be dealt with in any way under the law relating to mental health; or
- (b) if the Member has not responded within three months to a written request from the Secretary that the Member confirms that they want to remain a Member.

16 Liability after a Person Ceases to be a Member

A person who ceases to be a Member must pay to the Company:

- (a) all membership fees or other amounts owing to the Company that are due and unpaid at the date that the person ceases to be a Member; and
- (b) amounts that the Member is liable to pay under Article 8(b).

17 Register of Members

The register of Members must be kept by the Secretary and must contain:

- (a) for each Member:
 - (i) the Member's full name and address;
 - (ii) any alternative address nominated by the Member for service of notices; and
 - (iii) the date the Member was entered on the register;
- (b) for any person who ceased to be a Member within the last seven years:
 - (i) the person's full name and address; and
 - (ii) the dates when the person's membership started and ended; and
- (c) any other information prescribed by the Board.

18 Access to Register of Members

Members may inspect the register of Members in accordance with the Corporations Act.

General Meetings**19 General Meetings**

- (a) The Board may convene a general meeting of the Company whenever the Board thinks fit.
- (b) The Board may cancel or postpone any meeting convened by that Board by written notice to all persons who were entitled to receive notice of that meeting, except where the cancellation or postponement would be contrary to the Corporations Act. Any failure to give notice of cancellation or postponement does not invalidate the cancellation or postponement or any resolution passed at a postponed meeting.
- (c) A general meeting may be held at two or more venues using any technology that gives the Members as a whole a reasonable opportunity to participate.

20 Annual general meeting

- (a) A general meeting, called the annual general meeting, must be held:
 - (i) within 18 months after registration of the Company, and
 - (ii) after the first annual general meeting, at least once in every financial year and within five months after the end of the Company's financial year.
- (b) Even if these items are not set out in the notice of meeting, the business of an annual general meeting may include:
 - (i) a review of the Company's activities;
 - (ii) a review of the Company's finances;
 - (iii) any auditor's report;
 - (iv) the election of Directors, and
 - (v) the appointment and payment of the auditor, if any.
- (c) Before or at the annual general meeting, the Board must give information to the Members on the Company's activities and finances during the period since the last annual general meeting.
- (d) The chair of the annual general meeting must give Members as a whole a reasonable opportunity at the meeting to ask questions or make comments about the management of the Company.

21 Notice of General Meetings

- (a) Notice of a general meeting must be given at least 21 days before the meeting.
- (b) Each notice convening a general meeting must:
 - (i) be given to each Member entitled to vote at the meeting, each Director and the auditor (if any);
 - (ii) set out the place, date and time for the meeting (and, if the meeting is to be held in two or more venues, the technology that will be used to facilitate this);
 - (iii) state the general nature of the meeting's business;

- (iv) if a Special Resolution is to be proposed at the meeting, state the intention to propose the Special Resolution and the Special Resolution; and
- (v) state that a Member has the right to appoint one proxy and that if a Member appoints a proxy:
 - (A) the proxy must be a Member who is entitled, in the proxy's capacity as a Member, to attend and vote at the meeting;
 - (B) the proxy must not attend and vote at the meeting as proxy for another Member; and
 - (C) the Proxy Form must be delivered to the Company at its registered address or the address (including an electronic address) specified in the notice of the meeting at least 48 hours before the meeting.
- (c) The non-receipt of a notice convening a general meeting by, or the accidental omission to give notice to, any person entitled to receive notice does not invalidate the proceedings at or any resolution passed at the meeting.

22 Business of General Meetings

No person may move at any general meeting either any resolution (except in the form set out in the notice of meeting) or any amendment of any resolution, except:

- (a) with the approval of the Board;
- (b) under the Corporations Act which, if the Company is a Registered Charity, shall apply as if the Company is not a Registered Charity; or
- (c) with the permission of the chair of the meeting.

23 Right of Others to Attend General Meetings

- (a) A Secretary, Chief Executive Officer or Director who is not a Member is entitled to be present and, at the request of the chair of the meeting, to speak at any general meeting.
- (b) The auditor of the Company (if any) is entitled to attend any general meeting and to be heard at the meeting on any part of the business of the meeting that concerns the auditor in their capacity as auditor.
- (c) Any other person (whether a Member or not) requested by the Board to attend any general meeting is entitled to be present and, at the request of the chair of the meeting, to speak at that general meeting.

24 Quorum for General Meetings

- (a) No business may be transacted at any general meeting except, subject to Article 27, the election of a chair of the meeting, unless a quorum of Members is present at the time when the meeting proceeds to business.
- (b) Except as otherwise provided in this Constitution, whichever is the lesser of one third of the total number of Members at the date of the general meeting who are entitled to vote at the meeting (worked out as at the midnight before the meeting and, if a fraction, rounded up to the next highest whole number) or 10 Members Present constitutes a quorum.
- (c) If there is not a quorum at a general meeting within 30 minutes after the time specified in the notice of the meeting, the meeting is dissolved unless the chair of the meeting or the Board adjourns the meeting to a date, time and place determined by that chair or the Board. A quorum for the purpose of an adjourned meeting is five Members Present]. If no

quorum is present at any adjourned meeting within 30 minutes after the time for the meeting, the meeting is dissolved.

25 Chair of General Meetings

- (a) Subject to Article 25(b), the chair of the Board is entitled to preside as chair at every general meeting.
- (b) Where a general meeting is held and:
 - (i) there is no chair of the Board; or
 - (ii) the chair of the Board is not able to be present at the meeting or is not present within 15 minutes after the time appointed for the meeting, or despite being so present is unable or unwilling to act as chair of the meeting,the deputy chair of the Board is entitled to chair the meeting or, if the circumstances in Articles 25(b)(i) or 25(b)(ii) apply to the deputy chair of the Board, the Directors present may choose one of their number or, in the absence of all Directors or if none of the Directors present wish to act, the Members Present may elect one of their number to be chair of the meeting.

26 Adjournments

- (a) The chair may and must, if so directed by the meeting, adjourn the meeting from time to time and from place to place.
- (b) The only business which may be transacted at any adjourned meeting is the business left unfinished at the meeting from which the adjournment took place.
- (c) When a meeting is adjourned for 30 days or more, notice of the adjourned meeting must be given as in the case of an original meeting.
- (d) Except as provided by Article 26(c), it is not necessary to give any notice of an adjournment or of the business to be transacted at an adjourned meeting.
- (e) A resolution passed at a meeting resumed after an adjournment is passed on the day it was passed.

27 Conduct of General Meetings

- (a) The general conduct of each general meeting of the Company and the procedures to be adopted at the meeting are as determined at, during or prior to the meeting by the chair of the meeting.
- (b) The chair of a general meeting of the Company may make rulings without putting the question (or any question) to a vote if that chair considers action is required to ensure the orderly conduct of the meeting.
- (c) The chair of a general meeting of the Company may require the adoption of any procedures that are in that chair's opinion necessary or desirable for the proper and orderly casting or recording of votes at the meeting, whether on a show of hands or on a poll.
- (d) The chair of a general meeting of the Company or a person acting with that chair's authority may:
 - (i) require any person who wishes to attend the meeting to comply with searches, restrictions or other security arrangements that chair or a person acting with that chair's authority considers appropriate; and

- (ii) refuse entry to, or expel from, the meeting any person who:
 - (A) is not entitled under this Constitution to attend the meeting.
 - (B) refuses to, or does not comply with the arrangements;
 - (C) possesses a recording or broadcasting device without the consent of that chair or a person acting with that chair's authority;
 - (D) possesses placards or banners or an article which that chair or a person acting with that chair's authority considers to be dangerous, offensive or liable to cause disruption; or
 - (E) behaves or threatens to behave in a dangerous, offensive or disruptive manner.
- (e) If at any time the chair of a general meeting of the Company considers it necessary or desirable for the proper and orderly conduct of the meeting, that chair may demand the cessation of debate or discussion on any business, question, motion or resolution being considered by the meeting and require the business, question, motion or resolution to be put to a vote of the Members Present.
- (f) Any determination by the chair of a general meeting in relation to matters of procedure (including any procedural motions moved at, or put to, the meeting) or any other matter arising directly or indirectly from the business is final (including any procedural motions moved at, or put to, the meeting). Any challenge to a right to vote (whether on a show of hands or on a poll) or to a determination to allow or disregard a vote may only be made at the meeting and may be determined by the chair of the meeting whose decision is final.
- (g) If a person purports to cast a vote at a general meeting in contravention of this Constitution or the Corporations Act, the chair of the meeting may determine that the vote be disregarded and treated as not having been cast.
- (h) Nothing contained in this Article limits the powers conferred on a chair of a general meeting by law.

28 Acting Chair

If during any general meeting the chair of the meeting acting under Article 25 is unwilling to chair any part of the proceedings, that chair may withdraw during the relevant part of the proceedings and may nominate any person who immediately before the general meeting was a Director or who has been nominated for election as a Director at the meeting to be acting chair of the meeting during the relevant part of the proceedings. On the conclusion of the relevant part of the proceedings the acting chair of the meeting is to withdraw and the chair of the meeting acting under Article 25 is to resume to chair the meeting.

29 Circular Resolutions of Members

- (a) Subject to Article 29(c), the Board may put a resolution to the Members to pass a resolution without a general meeting being held (a **Circular Resolution**).
- (b) The Board must notify the auditor (if any) as soon as possible that a Circular Resolution has or will be put to Members and set out the wording of the resolution.
- (c) Circular Resolutions cannot be used:
 - (i) for a resolution to remove an auditor, appoint a Director or remove a Director;
 - (ii) for passing a Special Resolution; or
 - (iii) where the Corporations Act or this Constitution require a meeting to be held.

- (d) A Circular Resolution is passed if all the Members entitled to vote on the resolution sign or agree to the Circular Resolution, in the manner set out in Article 29(e) or Article 29(f).
- (e) Members may sign:
 - (i) a single document setting out the Circular Resolution and containing a statement that they agree to the resolution, or
 - (ii) separate copies of that document, as long as the wording is the same in each copy.
- (f) The Company may send a Circular Resolution by email to Members and Members may agree by sending a reply email to that effect, including the text of the resolution in their reply.

30 Voting at General Meetings

- (a) Unless a poll is demanded in accordance with Article 31, any resolution to be considered at a general meeting is to be decided on a show of hands of the Members Present. To avoid doubt, on a show of hands a Member may not vote by proxy.
- (b) Unless a poll is demanded, a declaration by the chair of a general meeting following a vote on a show of hands at the meeting that a resolution has been passed or lost is conclusive without proof of the number or proportion of the votes recorded in favour of or against the resolution and the chair and the minutes of the meeting do not need to state the number or proportion of the votes recorded in favour of or against the resolution.
- (c) At any general meeting, a poll may be demanded in accordance with Article 31. No poll may be demanded on the election of a chair of the meeting or, unless that chair otherwise determines, the adjournment of the meeting. A demand for a poll may be withdrawn.
- (d) In the case of an equality of votes on a show of hands or on a poll at a general meeting of the Company, the vote will be decided in the negative.
- (e) The chair of the meeting does not have a casting vote in addition to any vote to which that chair may be entitled as a Member or as a proxy.

31 Procedure for Polls

- (a) At any general meeting, a poll may be demanded on any resolution instead of, or after a vote by a show of hands, by:
 - (i) the chair;
 - (ii) if the Company is not a Registered Charity, a Member in accordance with the Corporations Act;
 - (iii) if the Company is a Registered Charity:
 - (A) at least five Members Present; or
 - (B) Members Present with at least 5% of the votes that may be cast on resolution (worked out as at the midnight before the meeting).
- (b) When demanded at a general meeting, a poll may be taken in the manner and at the time that the chair of the meeting directs.
- (c) The result of a poll may be announced in the manner and at the time (whether during the relevant meeting or afterwards) that the chair of the meeting considers appropriate.
- (d) The result of a poll is the resolution of the meeting at which the poll was demanded.

- (e) The demand for a poll does not prevent a meeting from continuing for the transaction of any business other than that on which a poll has been demanded. Subject to Articles 26 and 31(a), a poll demanded on any question of adjournment is to be taken at the meeting and without adjournment.

Representation and Voting of Members

32 Voting Rights

Subject to this Constitution and any rights or restrictions for the time being placed on any Member:

- (a) at meetings of Members, each Member is entitled to attend and vote may:
 - (i) attend and vote in person; or
 - (ii) be represented and vote by proxy;
- (b) a Member may only vote by one of the permitted methods in Articles 32(a) and 29; and
- (c) each Member has one vote.

33 Restrictions on Voting Rights

- (a) A Member is not entitled to vote at a general meeting or on a Circular Resolution or to be counted for the purpose of constituting a quorum at a general meeting if payment of that Member's membership fees is more than 28 days overdue as at that date of a general meeting.
- (b) A Member who is an employee of the Company or a Related Body Corporate of the Company is not entitled to vote on a resolution to appoint or elect a Director either at a general meeting or on a Circular Resolution.

34 Appointment of Proxy

- (a) A Member who is entitled to attend and vote at a general meeting of the Company may appoint one person as a proxy to attend and vote for the Member at that general meeting.
- (b) A proxy must be a Member who is entitled, in the proxy's capacity as a Member, to attend and vote at the meeting.
- (c) A proxy may only be appointed and act as proxy for one Member.
- (d) Subject to Article 36, a proxy appointed to attend and vote for a Member has the same rights as the Member to:
 - (i) speak at the meeting;
 - (ii) vote in a poll (but only to the extent allowed by the appointment); and
 - (iii) join in to demand for a poll.
- (e) An appointment of a proxy (**Proxy Form**) is valid if it is in accordance with any form (including electronic) that the Board may prescribe or accept.
- (f) Subject to Article 34(e), a Proxy Form must be signed by the Member appointing the proxy and must contain:
 - (i) the Member's name and address;
 - (ii) the Company's name;
 - (iii) the proxy's name and address, and

- (iv) the meeting or meetings at which the appointment may be used.
- (g) Proxy Forms must be received by the Company at the address stated in the notice under Article 21(b)(v) or at the Company's registered address at least 48 hours before a meeting (or any shorter period as the Board may permit).
- (h) A proxy appointment may specify the way the proxy must vote on a particular resolution.

35 Validity of Proxies

A vote exercised in accordance with the terms of a proxy appointment, is valid even if, before the proxy votes, the Member appointing the proxy:

- (a) ceases to be a Member; or
- (b) revokes the proxy's appointment,

unless notice of the cessation of membership or revocation (as the case may be) has been received by the Company at its registered office at least 48 hours (or any shorter period as the Board may permit) before the commencement of the meeting or adjourned meeting at which the proxy appointment is used.

36 Voting by Proxy

- (a) A proxy does not have the authority to speak and vote for a Member at a meeting while the Member is at the meeting.
- (b) A proxy is not entitled to vote on a show of hands (but this does not prevent a Member appointed as a proxy from voting as a Member on a show of hands).
- (c) When a poll is held:
 - (i) a proxy does not need to vote, unless the Proxy Form specifies the way the proxy must vote;
 - (ii) if the way the proxy must vote is specified on the Proxy Form, the proxy must vote that way; and
 - (iii) if the proxy is also a Member, the proxy may cast the two votes held in different ways.

The Board

37 Number of Directors

- (a) The number of Directors (not including alternate Directors) must not be less than five (or as otherwise required by law) nor more than seven.
- (b) The initial Directors are those persons who have agreed to act as Directors and who are named in Schedule 1. The initial Directors will be taken to be Member Elected Directors, the Traditional Owner Director and Board Appointed Directors as respectively set out in Schedule 1.
- (c) If the number of Directors is reduced below the minimum number fixed under this Constitution, the continuing Directors may act for the purpose of increasing the number of Directors to that number or of calling a general meeting of the Company but for no other purpose.

38 Board Composition

The Board shall comprise:

- (a) up to four Member Elected Directors;
- (b) one Traditional Owner Director; and
- (c) up to two Board Appointed Directors.

39 Eligibility of Directors

- (a) All Directors are to be natural persons.
- (b) A Director need not be a Member.
- (c) A Member Elected Director and a Traditional Owner Director must be a Manbarra or Bwgcolman Person.
- (d) A Director must not be:
 - (i) a currently serving elected official of the Commonwealth Government or Government of the State of Queensland or of the Palm Island Aboriginal Shire Council; or
 - (ii) an executive or managerial employee of the Commonwealth Government or Government of the State of Queensland or of the Palm Island Aboriginal Shire Council,but may be another officer or employee of the Commonwealth Government or Government of the State of Queensland or of the Palm Island Aboriginal Shire Council, or an officer or employee of a statutory authority, or government-owned corporation established under a law of the Commonwealth or a State.
- (e) A Director must not be:
 - (i) an employee of the Company or a Related Body Corporate of the Company; or
 - (ii) a person who is ineligible to be a director under the Corporations Act or the ACNC Act.
- (f) A person must not be elected or appointed as a Director if the election or appointment of the person would result in two Directors being Related Persons.
- (g) A person must give the Company their signed consent to act as a Director before being elected or appointed as a Director.

40 Election of Member Elected Directors

- (a) The Members Present may elect Member Elected Directors (other than the initial Directors) by a resolution passed at an annual general meeting.
- (b) Each of the Member Elected Directors must be appointed by a separate resolution unless:
 - (i) the Members Present have first passed a resolution that the appointments may be voted on together, and
 - (ii) no votes were cast against that resolution.
- (c) The Board must call for nominations for persons to be elected as Member Elected Directors no earlier than three months and no later than two months before the annual general meeting.
- (d) Any two Members entitled to vote at the annual general meeting may nominate a person to be elected as a Member Elected Director.
- (e) The nomination must:

- (i) be in the form prescribed by the Board;
 - (ii) contain such evidence of eligibility of the nominee to be a Member Elected Director as may be prescribed by the Board;
 - (iii) be signed by the nominee and each proposer; and
 - (iv) be received by the Company at least six weeks prior to the annual general meeting.
- (f) Before the annual general meeting is called, the Board must consider any nominations received and any notice of intention to submit for re-election received from Member Elected Directors under Article 41(b) and any other information that the Board considers relevant (including any advice received in accordance with Article 40(g)), to determine in its absolute discretion, if the persons submitting for election or re-election meet all eligibility requirements for appointment as a Member Elected Director including the requirements of Article 45.
- (g) In considering nominations received and assessing the eligibility, suitability and expertise of persons submitting for election or re-election, the Board may delegate its powers to such committees and seek advice from such committees or external advisors as the Board thinks fit.
- (h) The annual general meeting must vote on the election or re-election of all candidates who are eligible for appointment, even if the number of candidates who are eligible for appointment is less than or equal to the number of positions of Member Elected Directors available at the annual general meeting.

41 Term of Office of Member Elected Directors

- (a) At every annual general meeting one quarter of the Member Elected Directors (if a fraction, rounded up to the next highest whole number), or if there are less than four Member Elected Directors, at least one Member Elected Director, must retire from office.
- (b) A retiring Member Elected Director is eligible to be considered for re-election upon giving prior notice to the Secretary of intention to submit for re-election.
- (c) The Member Elected Directors who must retire at each annual general meeting will be the Member Elected Directors who have been in office longest since last being elected or re-elected. Between Member Elected Directors who were elected on the same day, the Member Elected Director to retire will be decided by lot, unless they agree otherwise.
- (d) A Member Elected Director's term of office starts at the end of the annual general meeting at which they are elected or re-elected and ends at the end of the annual general meeting at which they retire.
- (e) A Member Elected Director must retire from office at least once every four years.
- (f) A Member Elected Director may hold office for a maximum continuous period of eight years unless re-elected by a Special Resolution. A former Member Elected Director who previously held that office for a continuous period of eight years or more will be eligible for re-election as a Member Elected Director after one year has elapsed since the end of their last term of office.

42 Casual Vacancies

The Board may at any time appoint any person who meets all eligibility requirements for appointment as a Member Elected Director, to fill a casual vacancy in the office of a Member Elected Director. Any Director appointed under this Article may hold office only until the end of the

next annual general meeting of the Company and is eligible to be nominated for election as a Member Elected Director in accordance with Article 40.

43 Traditional Owner Director

- (a) The Manbarra Corporation is entitled to nominate a person to be the Traditional Owner Director by giving to the Secretary a written nomination signed by the Manbarra Corporation and the nominee together with such evidence of the eligibility of the nominee to be a Traditional Owner Director as may be prescribed by the Board.
- (b) As soon as reasonably practicable after receiving the nomination, the Board must consider the nomination and any other information that the Board considers relevant, to determine in its absolute discretion, if the nominee meets all eligibility requirements for appointment as the Traditional Owner Director including the requirements of Article 45. If the nominee meets all eligibility requirements, the Board must approve the nomination.
- (c) Upon approval of the nomination by the Board under Article 43(b), the appointment of the nominee as the Traditional Owner Director becomes effective immediately upon:
 - (i) if at the date of approval, the office of the Traditional Owner Director is vacant, the time of approval by the Board; or
 - (ii) if at the date of approval, the office of the Traditional Owner Director is not vacant, upon the office of the Traditional Owner Director becoming vacant (unless in the meantime the nomination is withdrawn by the Manbarra Corporation or the nominee by written notice to the Secretary).
- (d) The Traditional Owner Director may be removed from office by the Manbarra Corporation by written notice to the Secretary and the Traditional Owner Director. The removal takes effect on the later of the date the notice is received by the Secretary or any later effective date specified in the notice.
- (e) Unless removed under Article 43(d), a Traditional Owner Director holds office for a term of three years or any lesser period specified in their appointment and is eligible to be re-nominated under Article 43(a).
- (f) Subject to Article 43(f), a Traditional Owner Director may hold office for a maximum continuous period of nine years.
- (g) The Board may extend the term of office of a Traditional Owner Director for any additional period the Board considers appropriate.

44 Board Appointed Directors

- (a) The Board may appoint up to two persons as Board Appointed Directors.
- (b) A Board Appointed Director holds office for a term of two years or any lesser period specified in their appointment and is eligible to be re-appointed.
- (c) A Board Appointed Director may hold office for a maximum continuous period of eight years.

45 Profile of Directors

In nominating or appointing Directors, Members and the Board (as the case may be) must endeavour only to nominate or appoint Directors on the basis of merit, following an assessment of the skills and experience of nominees and candidates, and so as to ensure that the Board collectively has the necessary skills and experience to efficiently and effectively govern the

Company in accordance with best principles of corporate governance. As far as reasonably possible, due regard must be given to the following criteria:

- (a) all Directors should have an understanding of and commitment to the Objects;
- (b) all Directors should have knowledge and understanding of the obligations of Directors under the Corporations Act, the ACNC Act and other relevant legislation; and
- (c) each Director should have expertise relevant to the Objects, preferably in at least one of the following areas of expertise:
 - (i) Aboriginal culture;
 - (ii) Palm Island community aspirations and needs;
 - (iii) corporate governance;
 - (iv) community welfare, social policy and social planning;
 - (v) primary health;
 - (vi) business and organisational management;
 - (vii) law; and
 - (viii) financial management or accounting,and the Board should reflect a range of skills from across these areas;
- (d) each Director must hold:
 - (i) a current positive notice (blue card) issued under the *Working with Children (Risk Management and Screening) Act 2000* (Qld); and
 - (ii) a current Notification of Child Safety and Personal History Screening outcome issued by the Department of Communities, Child Safety and Disability Services;
- (e) the Board should comprise a range of genders and ages; and
- (f) the Board should comprise a range of connections to Palm Island geographical communities and family groups.

46 Remuneration of Directors

- (a) The Directors may be remunerated for their services as Directors in a manner and for a period to be decided by the Board provided that such remuneration does not exceed the rate of remuneration for persons holding equivalent positions to the Directors on the board (or equivalent body) of Queensland government bodies with similar responsibilities to the Company as published by the Government of the State of Queensland from time to time. Remuneration for services may include additional fees for work which has been authorised in advance by the Board.
- (b) The Directors are entitled to be paid or reimbursed for all travelling and other expenses properly incurred by them in attending and returning from any meeting of the Board or of a committee of the Board or any general meeting of the Company, or otherwise in connection with the business or affairs of the Company, where the amount payable has been approved by the Board.
- (c) Subject to the Corporations Act, a Director may be engaged by the Company in any other capacity (other than auditor or employee) and may be appointed on such terms as to remuneration, tenure of office and otherwise as may be determined by the Board.

47 Vacation of Office of Director

In addition to the circumstances in which the office of a Director becomes vacant under the Corporations Act, the ACNC Act and Article 43(d), the office of a Director becomes vacant if the Director:

- (a) becomes disqualified or ineligible to be a Director of the Company under the Corporations Act, the ACNC Act or under Article 39;
- (b) is removed from office by a resolution of the Members Present at a general meeting in accordance with the Corporations Act;
- (c) becomes of unsound mind or a person whose person or estate is liable to be dealt with in any way under the law relating to mental health;
- (d) resigns by written notice to the Secretary;
- (e) is absent from five meetings of the Board in a continuous period of twelve months without the consent of the Board; or
- (f) dies.

48 Alternate Directors

Subject to this Constitution, a Director may, with the approval of the Board, appoint a person who meets the eligibility requirements applicable to the Director by whom the alternate Director is to be appointed (as set out in Article 39), to be an alternate Director in the Director's place, either for a stated period or until the happening of a specified event, whenever by absence or illness or otherwise the Director is unable to attend to duties as a Director. The appointment must be in writing and signed by the Director and a copy of the appointment must be given to the registered office of the Company or to a meeting of the Board. The appointment takes effect on approval by the Board or, where the approval has been granted, at any later time specified in the appointment. The following provisions apply to any alternate Director:

- (a) the appointment of the alternate Director is terminated or suspended on receipt at the registered office of the Company of written notice signed by the Director by whom the alternate Director was appointed;
- (b) the alternate Director is entitled to receive notice of meetings of the Board and to attend and vote at the meetings if the Director by whom the alternate Director was appointed is not present;
- (c) the alternate Director is entitled to exercise all the powers (except the power to appoint an alternate Director) and perform all the duties of a Director, to the extent the Director by whom the alternate Director was appointed has not exercised or performed them or they have not been limited by the instrument appointing the alternate Director;
- (d) other than for reimbursement of expenses to the extent provided in this Constitution, unless the Board determines otherwise the alternate Director is not entitled to receive any remuneration as a Director from the Company, and any remuneration (not including reimbursement of expenses) paid to the alternate Director by the Company is to be deducted from the remuneration of the Director by whom the alternate Director was appointed;
- (e) the office of the alternate Director is terminated on the death of, or termination of office by, the Director by whom the alternate Director was appointed;
- (f) the alternate Director is not to be taken into account in determining the number of Directors; and

- (g) the alternate Director is, while acting as a Director, responsible to the Company for the alternate Director's own acts and defaults and is not the agent of the Director by whom the alternate Director was appointed.

CEO and Powers of the Board

49 Appointment of Chief Executive Officer

- (a) The Board may appoint a person to the office of Chief Executive Officer of the Company for the period and on the terms as it determines.
- (b) Subject to the terms of any agreement entered into in a particular case, the Board may at any time revoke any such appointment, with or without cause.
- (c) The Chief Executive Officer is not eligible to be a Director.

50 Powers of the Board and Chief Executive Officer

- (a) The business of the Company is managed by the Board, which may exercise all powers of the Company that are not, by the law or this Constitution, required to be exercised by the Company in general meeting.
- (b) The Board may, on the terms and conditions and with any restrictions as it determines, delegate to the Chief Executive Officer any of the powers exercisable by it and may at any time withdraw, suspend or vary any of those powers conferred on the Chief Executive Officer. Giving powers to the Chief Executive Officer does not prevent the exercise of those powers by the Board.

Duties of Directors

51 Duties

The Directors must comply with their duties as directors under legislation and common law and with the duties described in Governance Standard 5 made under the ACNC Act, which are:

- (a) to exercise their powers and discharge their duties with the degree of care and diligence that a reasonable person would exercise if they were director of the Company;
- (b) to act in good faith in the best interests of the Company and to further the Objects;
- (c) not to misuse their position as Director;
- (d) not to misuse information they gain in their role as Director;
- (e) to disclose any perceived or actual material conflicts of interest;
- (f) to ensure that the financial affairs of the Company are managed responsibly; and
- (g) not to allow the Company to operate while it is insolvent.

52 Conflicts of Interest

- (a) For the purposes of the duty described in Article 51(e), Directors must disclose the nature and extent of any actual or perceived material conflict of interest in a matter that is being considered at a Directors' meeting, or that is proposed in a written resolution, as soon as possible:
 - (i) to the other Directors; or
 - (ii) if all the Directors have the same conflict of interest, to the Members at the next annual general meeting, or at an earlier time if reasonable to do so.

- (b) The conflict of interest disclosure must be recorded in the minutes of the meeting.
- (c) A Director who has a material conflict of interest in a matter must not, except as provided under Article 52(d) be present at the meeting while the matter is being discussed, or vote on the matter.
- (d) A Director may still be present and vote if:
 - (i) their interest arises because they are a Member of the Company, and the other Members have the same interest;
 - (ii) their interest relates to an insurance contract that insures, or would insure, the Director against liabilities that the Director incurs as a Director of the Company;
 - (iii) their interest relates to an indemnity payment by the Company, or any contract relating to an indemnity that is allowed under the Corporations Act;
 - (iv) the Australian Securities and Investments Commission makes an order allowing the Director to vote on the matter; or
 - (v) the Directors who do not have a material personal interest in the matter pass a resolution that names the Director, the nature and extent of the Director's interest and how it relates to the Company's affairs and confirms that those Directors are satisfied that the interest should not stop the Director from being present or voting.

Proceedings of the Board

53 Proceedings of the Board

- (a) Subject to Article 53(b), the Board may meet together for the dispatch of business and adjourn and otherwise regulate its meetings as it determines.
- (b) The Board must meet no less than nine times in each calendar year.
- (c) A Director may at any time, and a Secretary upon the request of a Director must, convene a meeting of the Board. However, a Director acting alone is not entitled to call or cause the Secretary to call a meeting of the Board if a majority of Directors have previously resolved either that a single Director may not do so, or that the particular Director wishing to do so may not do so, or may not do so in respect of the matter for which a meeting is sought by that Director. A meeting of the Board may also be convened in any other manner determined by the Board from time to time.
- (d) Unless otherwise agreed by a majority of the Directors, at least 48 hours' notice must be given to every Director of the place, date and time of every Board meeting. Notice of a meeting of the Board may be given by mail (electronic or otherwise), personal delivery, facsimile transmission or other electronic means to the usual place of business or residence of the Director or at any other address given to a Secretary by the Director or by any technology agreed by all the Directors.

54 Quorum

- (a) Until otherwise determined by the Board, the quorum for Board meetings is one half of the total number of Directors (if a fraction, rounded up to the next highest whole number).
- (b) A Director who is not entitled to vote for any reason, is not counted when reckoning the quorum in respect of any relevant item of business.
- (c) A quorum must be present at the time each item of business is considered.

55 Meetings of the Board by Technology

- (a) For the purposes of the Corporations Act, each Director, by consenting to be a Director (or by reason of the adoption of this Constitution), consents to the use of each of the following technologies for holding a Board meeting:
- (i) video;
 - (ii) telephone;
 - (iii) any other technology that permits each Director to communicate with every other Director; or
 - (iv) any combination of these technologies.

A Director may withdraw the consent given under this Article in accordance with the Corporations Act.

- (b) Where the Directors are not all in attendance at one place and are holding a meeting using technology and each Director can communicate with the other Directors:
- (i) the participating Directors are, for the purpose of every provision of this Constitution concerning meetings of the Board, taken to be assembled together at a meeting and to be present at that meeting; and
 - (ii) all proceedings of the Board conducted in that manner are as valid and effective as if conducted at a meeting at which all of the participating Directors were physically present in the one location.

56 Chair of the Board

- (a) The Board may elect one of the Member Elected Directors or the Traditional Owner Director as chair of the Board and another as deputy chair of the Board and may decide the period for which that chair and that deputy chair are to hold office as chair and deputy chair, respectively.
- (b) Where a meeting of the Board is held and:
- (i) a chair of the Board has not been elected as provided by Article 56(a); or
 - (ii) the chair of the Board is not able to be present at the meeting or is not present within 15 minutes after the time appointed for the meeting, or despite being so present is unable or unwilling to chair the meeting,

the deputy chair of the Board is entitled to chair the meeting or, if the circumstances in Articles 56(b)(i) or 56(b)(ii) apply to the deputy chair of the Board, the Directors present may elect one of their number to chair the meeting.

57 Directors' Voting Rights and Exercise of Powers

- (a) Without limiting Article 59, a meeting of the Board of which notice has been given to all Directors and at which a quorum is present, is competent to exercise any of the authorities, powers and discretions for the time being vested in or exercisable by the Board. Nothing in this Article 57(a) limits the exercise of any authority, power or discretion of the Board which has been delegated by the Board in accordance with law or this Constitution.
- (b) Subject to this Constitution, questions arising at a meeting of the Board are decided by a majority of votes of Directors present and voting.
- (c) In the case of an equality of votes at a meeting of the Board, the chair of the meeting has a casting vote in addition to that chair's deliberative vote.

- (d) Subject to Articles 52 and 54 and the Corporations Act, a Director:
 - (i) who has an interest in a matter may vote in respect of that matter if it comes before the Board and be counted as part of the quorum;
 - (ii) may enter into contracts with, or otherwise have dealings with, the Company;
 - (iii) may hold any other office or place of profit in the Company (other than auditor or employee); and
 - (iv) may hold any other office or place of profit in any other company, body corporate, trust or entity promoted by the Company or in which the Company has an interest of any kind.
- (e) A Director is not disqualified from the Director's office by contracting with the Company in any capacity by reason of holding the office of Director.
- (f) A Director is not liable to account to the Company for any profit realised by any contract, dealings, office or place of profit contemplated by Article 57(d), by reason only of holding the office of Director or of the fiduciary relationship established by the office of Director.
- (g) Despite having an interest in any contract or arrangement a Director may participate in the execution of any document evidencing or connected with the contract or arrangement, whether by signing, sealing or otherwise.

58 Committees of the Board

- (a) The Board may delegate any of its powers to committees consisting of any one or more Directors or any other person or persons as the Board thinks fit and may revoke that delegation. In the exercise of delegated powers, any committee formed or person or persons appointed to the committee must conform to any regulations that may be imposed by the Board. A delegate of the Board may be authorised to sub-delegate any of the powers for the time being vested in the delegate.
- (b) The meetings and proceedings of any committee are to be governed by the provisions of this Constitution for regulating the meetings and proceedings of the Board so far as they are applicable and are not in conflict with or superseded by any regulations made by the Board under Article 58.
- (c) Nothing in this Article 58 limits the power of the Board to delegate.

59 Written Resolutions of Directors

- (a) The Board may pass a resolution without a Board meeting being held if all Directors, or a majority of Directors (where notice of the resolution has been given to all Directors) who are entitled to vote on the resolution (not being less than the number required for a quorum at a meeting of the Board) assent to a document containing a statement that they are in favour of the resolution set out in the document.
- (b) A Director may signify assent to a document under this Article 59 by signing the document or by notifying a Secretary of the assent of the Director by any technology including fax or email. The resolution is passed when the last Director, or the last of the Directors constituting a majority (as applicable), has assented to the document.
- (c) Separate copies of a document may be used for signing by the Directors if the wording of the resolution and statement is identical in each copy.
- (d) Where a Director signifies assent to a document under Article 59(b) other than by signing the document, the Director must by way of confirmation sign the document before or at

the next meeting of the Board attended by that Director. The resolution the subject of a document is not invalid if a Director does not comply with this requirement.

- (e) For the purpose of this Article 59, the references to Directors include any alternate Director appointed by a Director who is not available to assent to the document or is otherwise unable to assent to the document within a reasonable time, but do not include any other alternate Directors.

60 Defects in Appointments of Directors

All actions at any meeting of the Board or by a committee or by any person acting as a Director are, despite the fact that it is afterwards discovered that there was some defect in the appointment of any of the Directors or the committee or the person acting as a Director or that any of them were disqualified, as valid as if every person had been properly appointed and was qualified and continued to be a Director or a member of the committee.

Secretaries and Other Officers

61 Secretaries

- (a) The Company must have at least one Secretary, who may also be a Director or an employee of the Company.
- (b) A Secretary of the Company holds office on the terms and conditions as to remuneration, and otherwise, as the Board decides.
- (c) The Board may at any time terminate the appointment of a Secretary.
- (d) The Board must ensure that the Secretary has the skills, knowledge, qualifications and experience necessary to perform that office.

62 Other Officers

- (a) The Board may from time to time:
 - (i) create any other position or positions in the Company with the powers and responsibilities as the Board may from time to time confer; and
 - (ii) appoint any person, whether or not a Director, to any position or positions created under Article 62(a)(i) (provided that a Director cannot be an employee of the Company).
- (b) The Board may at any time terminate the appointment of a person holding a position created under Article 62(a)(i) and may abolish the position.

Seals

63 Seals and Their Use

The Company may have a common seal and a duplicate common seal. If the Company has any such seal:

- (a) it may only be used with the authority of the Board; and
- (b) every document to which it is affixed must be signed by a Director and be countersigned by another Director, a Secretary or another person appointed by the Board to countersign that document or a class of documents in which that document is included.

Service of Documents**64 Service of Documents**

In this Article 64, a reference to a document includes a notice. Subject to the Corporations Act:

- (a) Any Member who has not left at or sent to the registered office, a place of address or an electronic address (for registration in the register) at or to which all documents of the Company may be served or sent is not entitled to receive any document.
- (b) A document may be given by the Company to any Member by, in the Company's discretion:
 - (i) serving it on the Member personally;
 - (ii) sending it by post to the Member or leaving it at the Member's address as shown in the register of Members or the address nominated by the Member to the Company for the giving of documents;
 - (iii) sending it to the fax number nominated by the Member to the Company for the giving of documents;
 - (iv) sending it to the electronic address nominated by the Member to the Company for the giving of documents or by other electronic means nominated by the Member;
 - (v) if a Member nominates any electronic means by which the Member may be notified that documents are available and may access documents, sending a notification that the document is available for access, in each case by the relevant electronic means; or
 - (vi) serving it in any manner contemplated in this Article 64(b) on a Member's attorney as specified by the Member in a notice given under Article 64(c).
- (c) By written notice to the Secretary left at or sent to the registered office of the Company, a Member may request that all documents to be given by the Company or the Board be served on the Member's attorney at an address, or by electronic means, nominated in the notice and the Company may do so in its discretion.
- (d) A document may be sent to a Member whose address for documents is outside Australia by airmail, air courier or fax or otherwise be sent or made available electronically (including as contemplated by Article 64(b)(v)).
- (e) Any document sent by post is conclusively considered to have been served at the expiration of five days after the envelope containing the document is posted and, in proving service, it is sufficient to prove that the envelope containing the document was properly addressed and posted.
- (f) Any document served on a Member personally or left at the Member's address is conclusively considered to have been served when delivered.
- (g) Any document sent to a Member by electronic means is conclusively considered to have been served when the fax or other electronic transmission is sent.
- (h) Any document made available to a Member by electronic means as contemplated by Article 64(b)(v) is conclusively considered to have been served when notification that the document is available for access by that means is sent.

Minutes and Records**65 Minutes and Records**

- (a) The Company must keep minute books to make and keep a record of:
 - (i) proceedings and resolutions of meetings of the Company's Members;
 - (ii) proceedings and resolutions of Board meetings; and
 - (iii) resolutions passed by Members or the Board without a meeting.
- (b) Minutes of meetings must be signed by the chair of the meeting or a Director within a reasonable time after the meeting is held, or by a Director in the case of a written resolution.
- (c) Minute books must be kept at the Company's registered office or its principal place of business in this jurisdiction.
- (d) Minute books that relate to Members' meetings and Members' resolutions passed without meetings must be available for inspection by Members, free of charge. Members may send a written request to the Company for a copy of those minutes. The Company must send the copy within 14 days of the request or, if the Company requires payment, within 14 days after payment.

66 Financial Affairs and Records

- (a) The Company must keep written financial records that:
 - (i) correctly record and explain its transactions and the financial position and performance of the Company; and
 - (ii) would enable true and fair financial statements to be prepared and audited.
- (b) The Company must also keep written records that correctly record its operations.
- (c) A record must be retained for at least seven years from the date of the transaction to which the record relates.
- (d) The Directors must take reasonable steps to ensure the Company's records are kept safe and can be made available within a reasonable time to a person who is entitled to inspect them.
- (e) The Board must have suitable oversight of the Company's financial affairs and otherwise ensure that the financial affairs of the Company are managed responsibly, including by regular scrutiny of the Company's financial reports and ensuring that the Board or a relevant Committee includes persons with relevant financial skills, knowledge, qualifications and experience.

Financial Year**67 Financial Year**

The financial year of the Company is from 1 July to 30 June unless the Board determines otherwise.

Constitution and By-Laws**68 Amendment of Constitution**

- (a) This Constitution may only be modified or repealed by Special Resolution.

- (b) A Special Resolution to modify or repeal this Constitution does not have any effect unless the modification or repeal has first been approved by a resolution of the Board.

69 By-Laws

- (a) The Board may make, adopt, amend and repeal by-laws to give effect to any provision of this Constitution or generally for the purposes of carrying out the Objects.
- (b) Any By-Laws adopted by the Board will be binding on the Members and officers of the Company.
- (c) To the extent of any inconsistency, this Constitution prevails over any By-Laws.

Winding Up or Revocation of Endorsement of the Company

70 Revocation of Endorsement

If the Company is endorsed as a Deductible Gift Recipient and that endorsement is revoked (but the Company is not at that time being wound up or dissolved), any surplus Gifts and Deductible Contributions which were paid for the principal purpose of the Company and any money received by the Company because of such surplus Gifts and Deductible Contributions, must not be paid to or distributed to the Members but must be given or transferred to one or more Registered Charities that are Deductible Gift Recipients and have objects similar to the Objects, as selected by the Board or, in the absence of a decision by the Board, by the Members by Special Resolution.

71 Winding Up

On the winding up or dissolution of the Company any property whatsoever of the Company, including any Gifts and Deductible Contributions and money received by the Company because of such Gifts and Deductible Contributions, that remains, after satisfaction of all debts and liabilities of the Company (including the costs of winding up), must not be paid to or distributed among the Members but must be given or transferred to one or more Registered Charities that are Deductible Gift Recipients and have objects similar to the Objects, as selected by the Board or, in the absence of a decision by the Board, by the Members by Special Resolution at or before the time of winding up or dissolution of the Company.

Indemnity

72 Indemnity of Officers, Insurance and Access

- (a) The Company indemnifies each officer of the Company and, if the Board considers it appropriate, any officer of a wholly-owned subsidiary of the Company, out of the assets of the Company to the relevant extent against any liability incurred by the officer in or arising out of the conduct of the business of the Company or the wholly-owned subsidiary (as the case may be) or in or arising out of the discharge of the duties of the officer.
- (b) Where the Board considers it appropriate, the Company may execute a documentary indemnity in any form in favour of any officer of the Company or a wholly-owned subsidiary of the Company, provided that such terms are not inconsistent with this Article 72.
- (c) Where the Board considers it appropriate, the Company may:
 - (i) make payments by way of premium in respect of any contract effecting insurance on behalf or in respect of an officer of the Company or a wholly-owned subsidiary of the Company against any liability incurred by the officer in or arising out of the

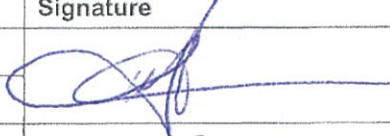
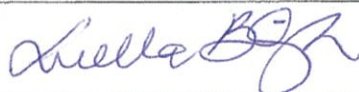
- conduct of the business of the Company or a wholly-owned subsidiary of the Company or in or arising out of the discharge of the duties of the officer; and
- (ii) bind itself in any contract or deed with any officer of the Company or a wholly-owned subsidiary of the Company to make the payments.
- (d) A Director has a right of access to the financial records of the company at all reasonable times.
- (e) Where the Board considers it appropriate, the Company may:
- (i) give a Director or former Director access to certain papers, including documents provided or available to the Directors and other papers referred to in those documents; and
 - (ii) bind itself in any contract with a Director or former Director to give the access.
- (f) In this Article 72:
- (i) **officer** means:
 - (A) a Director, Secretary, executive officer or employee; or
 - (B) a person appointed as a trustee by, or acting as a trustee at the request of, the Company or a wholly-owned subsidiary of the Company, and includes a former officer.
 - (ii) **duties of the officer** includes, in any particular case where the Board considers it appropriate, duties arising by reason of the appointment, nomination or secondment in any capacity of an officer by the Company or, where applicable, a subsidiary of the Company to any other corporation.
 - (iii) **to the relevant extent** means:
 - (A) to the extent the Company is not precluded by law from doing so;
 - (B) to the extent and for the amount that the officer is not otherwise entitled to be indemnified and is not actually indemnified by another person (including, but without limitation, a subsidiary or an insurer under any insurance policy);
 - (C) where the liability is incurred in or arising out of the conduct of the business of another corporation or in the discharge of the duties of the officer in relation to another corporation, to the extent and for the amount that the officer is not entitled to be indemnified and is not actually indemnified out of the assets of that corporation; and
 - (D) in the case of an employee who is not a Secretary or executive officer, to the extent that the conduct of the employee did not constitute serious and wilful misconduct.
 - (iv) **liability** means all costs, charges, losses, damages, expenses, penalties and liabilities of any kind including, in particular, legal costs incurred in defending any proceedings (whether criminal, civil, administrative or judicial) or appearing before any court, tribunal, government authority or other body.

Schedule 1 – Initial Directors

Full Name	Director Category
Allan PALM ISLAND	Traditional Owner Director
Harriet Jean HULTHEN	Member Elected Director
Luella BLIGH	Member Elected Director
Mark JOHNSTON	Board Appointed Director
Rhonda Leigh PHILLIPS	Board Appointed Director

Schedule 2 - Consent to Terms of this Constitution**Initial Members**

Each of the people named below as a Member consents to becoming a Member and agrees to the terms of this Constitution.

Name	Address	Signature
Mislam SAM	1 Bamboo Creek Road	
	PALM ISLAND QLD 4816	
Allan PALM ISLAND	1070 Wallaby Point Road	
	PALM ISLAND QLD 4816	
Harriet Jean HULTHEN	19 Keenan St	
	OONOONBA QLD 4811	
Luella BLIGH	Wallaby Point Road	
	PALM ISLAND QLD 4816	